

**OFFICE OF THE SECRETARY**

P.O. Box 942883  
Sacramento, CA 94283-0001



October 1, 2018

Honorable Joseph Kalashian  
Judge of the Superior Court  
County of Tulare  
221 S. Mooney Boulevard, Room 303  
Visalia, CA 93291

Re: Jimenez, Jose Raymond  
CDC No.: AH3570  
Case No.: VCF247729  
Date of Sentence: 5/12/2011

Dear Honorable Joseph Kalashian:

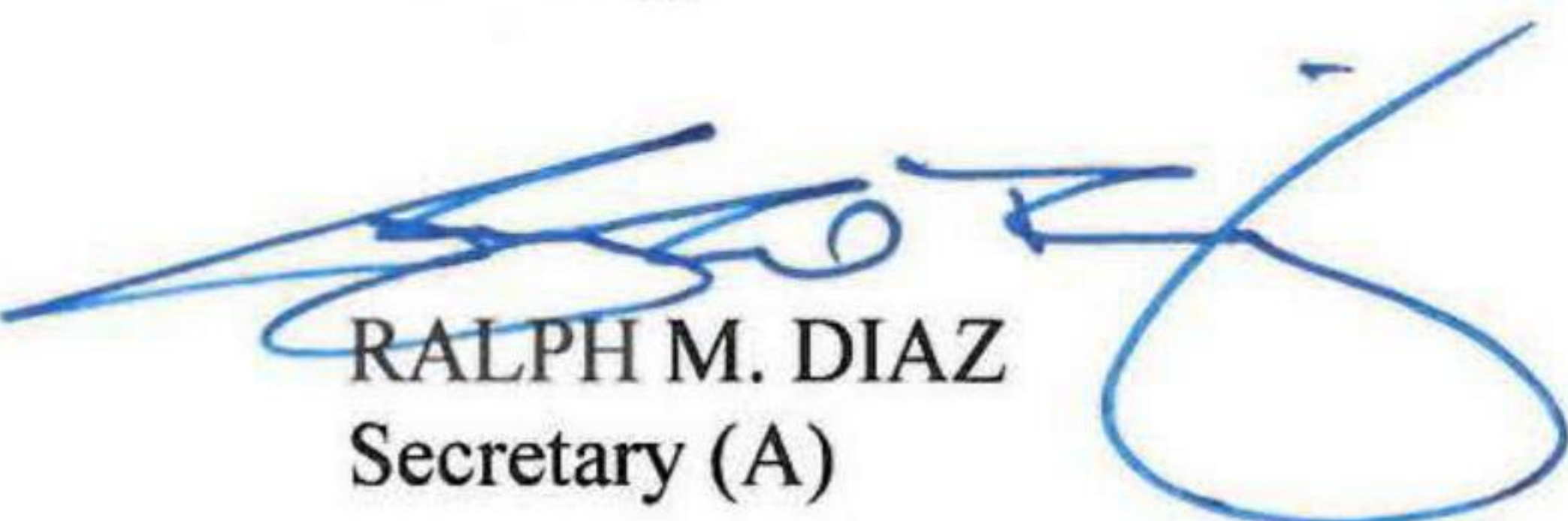
The purpose of this letter is to provide the court with authority to resentence Jose Raymond Jimenez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Jimenez was sentenced in 2011, and was convicted of section 245, subdivision (a)(1), Assault with a Deadly Weapon to Wit: Knife. The trial court sentenced inmate Jimenez on 5/12/2011. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Jimenez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Jimenez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,



RALPH M. DIAZ  
Secretary (A)

Enclosures:  
Abstract of Judgment-Prison Commitment-Determinate  
Minute Order  
Information/Complaint

cc: Honorable Bret D. Hillman, Tulare County Presiding Judge  
Tulare District Attorney  
Public Defender

**ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE**  
 (INVALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

CR-290

|                                                                                 |                                       |                                                     |               |                                               |  |
|---------------------------------------------------------------------------------|---------------------------------------|-----------------------------------------------------|---------------|-----------------------------------------------|--|
| SUPERIOR COURT OF CALIFORNIA, COUNTY OF: <b>Tulare</b>                          |                                       |                                                     |               |                                               |  |
| PEOPLE OF THE STATE OF CALIFORNIA vs.<br>DEFENDANT: <b>Jose Raymond Jimenez</b> |                                       | DOB: <b>9-6-92</b>                                  | VCF247729 - A |                                               |  |
| AKA: <b>JD</b>                                                                  |                                       |                                                     | -B            |                                               |  |
| CII NO.: <b>A30726848</b>                                                       |                                       | <input type="checkbox"/> NOT PRESENT                | -C            |                                               |  |
| BOOKING NO.: <b>1100004239</b>                                                  |                                       | <input type="checkbox"/> AMENDED ABSTRACT           | -D            |                                               |  |
| COMMITMENT TO STATE PRISON<br>ABSTRACT OF JUDGMENT                              |                                       |                                                     |               |                                               |  |
| DATE OF HEARING<br><b>5-12-11</b>                                               | DEPT. NO.<br><b>5</b>                 | JUDGE<br><b>Joseph Kalashian</b>                    |               |                                               |  |
| CLERK<br><b>Rita Espino</b>                                                     | REPORTER<br><b>Lesia Mervin #4753</b> | PROBATION NO. OR PROBATION OFFICER<br><b>571903</b> |               | <input type="checkbox"/> IMMEDIATE SENTENCING |  |
| COUNSEL FOR PEOPLE<br><b>Wes Meyer, DDA</b>                                     |                                       | COUNSEL FOR DEFENDANT<br><b>Sylvia Hanna, DPD</b>   |               | <input checked="" type="checkbox"/> APPTD.    |  |

1. Defendant was convicted of the commission of the following felony:  
☐ Additional counts are listed on attachment  
 (number of pages attached)

| COUNT | CODE | SECTION NO. | CRIME                                     | YEAR CRIME COMMITTED | DATE OF CONVICTION (MO./DATE/YEAR) | CONVICTED BY |       |      | TERM (L, M, U) | CONCURRENT | CONSECUTIVE 1/3 VIOLENT | CONSECUTIVE 1/3 NON-VIOLENT | CONSECUTIVE FULL TERM | INCOMPLETE SENTENCE (rule 10.5) | 694 STAY | PRINCIPAL OR CONSECUTIVE TIME IMPOSED |      |
|-------|------|-------------|-------------------------------------------|----------------------|------------------------------------|--------------|-------|------|----------------|------------|-------------------------|-----------------------------|-----------------------|---------------------------------|----------|---------------------------------------|------|
|       |      |             |                                           |                      |                                    | JURY         | COURT | PLEA |                |            |                         |                             |                       |                                 |          | YRS.                                  | MOS. |
| 1     | PC   | 245(a)(1)   | Assault with Deadly Weapon to Wit: Knife  | 2011                 | 4-8-11                             |              |       | X    | U              |            |                         |                             |                       |                                 |          | 4                                     | 0    |
| 2     | PC   | 245(a)(1)   | Assault with Deadly Weapon To Wit : Knife | 2011                 | 4-8-11                             |              |       | X    | M              |            | X                       |                             |                       |                                 |          | 1                                     | 0    |
|       |      |             |                                           |                      |                                    |              |       |      |                |            |                         |                             |                       |                                 |          |                                       |      |
|       |      |             |                                           |                      |                                    |              |       |      |                |            |                         |                             |                       |                                 |          |                                       |      |
|       |      |             |                                           |                      |                                    |              |       |      |                |            |                         |                             |                       |                                 |          |                                       |      |
|       |      |             |                                           |                      |                                    |              |       |      |                |            |                         |                             |                       |                                 |          |                                       |      |

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

| COUNT | ENHANCEMENT       | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | TOTAL |
|-------|-------------------|--------------------------------|-------------|--------------------------------|-------------|--------------------------------|-------|
| 1     | PC12022.7(a)      | 3 years                        |             |                                |             |                                | 3 0   |
| 1     | PC186.22(b)(1)(B) | 5 years                        |             |                                |             |                                | 5 0   |
|       |                   |                                |             |                                |             |                                |       |
|       |                   |                                |             |                                |             |                                |       |
|       |                   |                                |             |                                |             |                                |       |
|       |                   |                                |             |                                |             |                                |       |

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

| ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | TOTAL |
|-------------|--------------------------------|-------------|--------------------------------|-------------|--------------------------------|-------|
|             |                                |             |                                |             |                                |       |
|             |                                |             |                                |             |                                |       |
|             |                                |             |                                |             |                                |       |
|             |                                |             |                                |             |                                |       |

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

| COUNTY | CASE NUMBER |
|--------|-------------|
|        |             |
|        |             |
|        |             |

6. TOTAL TIME ON ATTACHED PAGES: 13 0

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 13 0

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

VCF247729

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$2,500 per PC 1202.4(b) forthwith per PC 2085.5; \$2,500 per PC 1202.45 suspended unless parole is revoked.  
\$ per PC 1202.44 is now due, probation having been revoked.  
Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.  
\$ per PC 1202.44 is now due, probation having been revoked.  
Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.  
\$ per PC 1202.44 is now due, probation having been revoked.  
Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.  
\$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ Amount to be determined to victim(s)\* Restitution Fund  
Case B: \$ Amount to be determined to victim(s)\* Restitution Fund  
Case C: \$ Amount to be determined to victim(s)\* Restitution Fund  
Case D: \$ Amount to be determined to victim(s)\* Restitution Fund

\* Victim name(s), if known, and amount breakdown in item 11, below. \* Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive  
includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense  
Case B: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive  
includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense  
Case C: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive  
includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense  
Case D: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive  
includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$80 per PC 1465.8.

e. Criminal Conviction Assessment: \$60 per GC 70373.

10. TESTING a. Compliance with PC 296 verified b. AIDS per PC 1202.1 c. Other (specify): PC296(a) ordered

11. Other orders (specify):

The defendant advised of PC12021 & PC12316(b)(3); Defendant shall register as a gang member pursuant to PC186.30; this requirement shall remain in effect for five years from today's date pursuant to PC186.32(c); Restitution to Victim's Compensation Gov. Claims Board pursuant to PC 1202.4(f)(2) to remain open; Restitution to victims, C.S. & M.A., remain open pending any future or medical expenses

12. IMMEDIATE SENTENCE:

Probation to prepare and submit  
Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: Hispanic

13. EXECUTION OF SENTENCE IMPOSED:

- a. at initial sentencing hearing.  
b. at resentencing per decision on appeal.  
c. after revocation of probation.  
d. at resentencing per recall of commitment. (PC1170(d).)  
e. other (specify):

14. CREDIT FOR TIME SERVED

| CASE                      | TOTAL CREDITS | ACTUAL                            | LOCAL CONDUCT  |
|---------------------------|---------------|-----------------------------------|----------------|
| A                         | 118           | 103                               | 15 4019 2933.1 |
| B                         |               |                                   | 4019 2933.1    |
| C                         |               |                                   | 4019 2933.1    |
| D                         |               |                                   | 4019 2933.1    |
| Date Sentence Pronounced: |               | Time Served in State Institution: |                |
| 5-12-11                   |               | DMH                               | CDCR CRC       |

15. The defendant is remanded to the custody of the sheriff forthwith After 48 hours excluding Saturdays, Sundays, and holidays.  
To be delivered to the reception center designated by the director of the California Department of Corrections and Rehabilitation.  
other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

Martha Gomez

DATE

5-12-11